

TENTATIVE RULING

Case: State of California, by and through the Department of Water
Resources v. Sierra Northern Railway et al.
Case No. CV2022-1546

Hearing Date: April 30, 2026 Department Fourteen 9:00 a.m.

Motion to consolidate:

Plaintiff State of California, by and through the Department of Water Resources' motion to consolidate for purposes of pretrial case management and trial for resolution of right to take is **GRANTED IN PART**. (Code Civ. Proc., § 1048; Cal. Rules of Court, rule 3.350.) The Court grants the motion to consolidate cases CV2022-1775, CV2022-1776, CV2022-1777, CV2022-1778, CV2022-1807, CV2022-1955, CV2022-2005, CV2022-2016, CV2023-0759, CV2023-0772, CV2023-0774, CV2023-0791, CV2023-0812, CV2023-0954, CV2023-0956, CV2023-0973, CV2023-1009, and CV2023-1284 based upon common issues of law or fact. (Code Civ. Proc., § 1048, subd. (a).) The Court finds that consolidating these actions will promote judicial efficiency, avoid the unnecessary duplication of evidence, and avoid any danger of inconsistent adjudications. (See *Todd-Stenberg v. Dalkon Shield Claimants Trust* (1996) 48 Cal.App.4th 976, 978–979; see also *Hamilton v. Asbestos Corp., Ltd.* (2000) 22 Cal.4th 1127, 1148, fn. 12.) The Court declines to consolidate Case No. CV2022-1546. The Court finds that Case No. CV2022-1546 does not share sufficient common issues of law or fact with the other cases. (Code Civ. Proc., § 1048, subd. (a).) The Court further finds that consolidating Case No. CV2022-1546 with the other cases would cause undue confusion or prejudice and would not promote judicial efficiency. (See *Todd-Stenberg, supra*, 48 Cal.App.4th at pp. 978–979.)

Case number CV2022-1775 shall be the lead case. (Cal. Rules of Court, rule 3.350(b).)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

Statutory trial preference:

All parties are **DIRECTED TO APPEAR** to select a trial date.

TENTATIVE RULING

Case: **State of California, by and through the Department of Water
Resources v. Wooden Decoy, LLC et al.
Case No. CV2022-1775**

Hearing Date: **April 30, 2026** **Department Fourteen** **9:00 a.m.**

On Plaintiff State of California, by and through the Department of Water Resources' motion to consolidate and statutory trial preference, please refer to the tentative ruling in Case No. CV2022-1546. (See Cal. Rules of Court, rule 3.350(a), (b).)